

File No.: EXP202207973

RESOLUTION No.: R/00088/2023

Having reviewed the complaint filed on July 1, 2022, with this Agency by Mr. A.A.A., against GOOGLE LLC, for not having duly addressed his request to exercise the rights established in the GDPR.

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the complainant) exercised the right to erasure concerning the URL(s) transcribed in his complaint, against GOOGLE LLC with NIF 770493581 (hereinafter, the respondent), and his request, as stated by the complainant, did not receive the legally established response.

The complainant states that, after exercising the right to be forgotten, the respondent did not respond regarding some links and provided a favorable response regarding others, but without proceeding with the de-indexing.

It was requested not only that the respondent remove the content of the URL but the URL itself.

The complainant's request refers to the removal, in the search results page, of the following URL(s):

1. ***URL.1
2. ***URL.2
3. ***URL.3
4. ***URL.4
5. ***URL.5
6. ***URL.6
7. ***URL.7
8. ***URL.8
9. ***URL.9
10. ***URL.10

The complainant provides various documentation related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission for processing of complaints filed with the AEPD, consisting of transferring them to the Data Protection Officers designated by the controllers or processors of the data, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not designated them, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month, without receiving a response.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for understanding the complainant's requests as satisfied. Consequently, on September 27, 2022, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have commenced with the aforementioned admission agreement, will be six months.

The mentioned agreement granted the respondent entity a hearing process, so that within ten working days it could present the allegations it deemed appropriate.

This entity summarized the following allegations:

The respondent states that the complainant, on June 18, 2022, exercised the right to erasure concerning ten URLs that, according to him, appeared among the search results when conducting a query based on his name.

That, by email dated June 20, 2022, the interested party was informed that three of the search results subject to his request referred to publications in which his name did not appear; that five of the results subject to the complaint did not appear when conducting a query based on his name and surname;

that one of the search results was blocked, and his complaint regarding the remaining search result was denied with justification.

That the content of the webpage referred to by the disputed search result has been re-examined, and the initial decision has been reconsidered, and consequently, the blocking requested by the complainant has been carried out.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as handling complaints filed by an interested party and investigating the reasons for them.

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Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the claim that gives rise to this procedure, the claim was forwarded to the responsible entity for analysis, requiring a response to this Agency within one month and proof of having provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their claim accepted.”

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, whose exceptional nature implies that, whenever possible, preference is given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

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In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. FOURTH: The right to be forgotten is contemplated in Article 17 of the GDPR, as well as in Article 93 of the LOPDGGDD, regarding the right to be forgotten in Internet searches, which states, in its paragraph 1, the following:

“1. Everyone has the right for search engines on the Internet to remove from the lists of results obtained from a search conducted based on their name the published links that contained information relating to that person when they are inadequate, inaccurate, irrelevant, outdated, or excessive, or have become such over time, taking into account the purposes for which they were collected or processed, the time elapsed, and the nature and public interest of the information.

Similarly, this must be done when the personal circumstances invoked by the affected party demonstrate the prevalence of their rights over the maintenance of the links by the Internet search service.

This right shall persist even when the retention of the information published on the website to which the link refers is lawful and it has not been deleted beforehand or simultaneously.”

As stated in the Judgment of the Supreme Court of January 11, 2019, “This fundamental right to be forgotten is not an unlimited right - constitutional doctrine holds - because, although the Constitution does not expressly establish specific limits, based on the principle of unity of the Constitution, the limits derived from respect for other fundamental rights apply, among which the freedom of information proclaimed in Article 20 of the Constitution is of particular relevance.”

Regarding the nature of the search engine as a data controller, it should be noted that a search engine is a tool that facilitates internet users' access to certain web pages. To do this, the tool accesses a list of previously indexed links and offers the user a list of web addresses that refer to pages containing the words selected by the user.

The Judgment of the Court of the European Union of May 13, 2014 states the following:

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Section 28: (...) “by exploring the Internet in an automated, constant, and systematic manner in search of the information published there, the manager of a search engine collects such data which it extracts, records, and subsequently organizes within the framework of its indexing programs, retains on its servers, and, where applicable, communicates and facilitates access to its users in the form of search result lists. Since these operations are explicitly and unconditionally covered in Article 2, letter b), of Directive 95/46, they must be classified as processing in the sense of that provision, regardless of whether the search engine manager also performs the same operations with other types of information and does not distinguish between these and personal data.”

Section 33: “However, the search engine manager is the one who determines the purposes and means of this activity and, thus, of the processing of personal data that it carries out in this context

and, consequently, must be considered responsible for such processing under the aforementioned Article 2, letter d.”

Section 35: “In this regard, it should be noted that the processing of personal data carried out within the framework of a search engine's activity is distinct from that carried out by website publishers, which consists of displaying that data on a webpage, and is added to it.”

Consequently, the Court of Justice considers that the search engine manager is responsible for the processing of data by determining the purposes and means of its activity.

Regarding the possibility of exercising the right to erasure before the search engine without resorting to the website manager, the Court of Justice of the European Union, in its Judgment of May 13, 2014, (Case C-131/12), stated: “(...) processing of data (...) carried out by the manager of a search engine may significantly affect the fundamental rights to respect for private life and the protection of personal data when the search carried out using that search engine is based on the name of a natural person, since such processing allows any internet user to obtain, through the list of results, a structured view of the information relating to that person that may be found on the Internet, which potentially affects a multitude of aspects of their private life, which, without that search engine, would not have been interconnected or would have been very difficult to do so, thus allowing the establishment of a more or less detailed profile of the person in question. Furthermore, the effect of the interference with the rights of the data subject is multiplied by the significant role that the Internet and search engines play in modern society, which gives the information contained in such a list of results a ubiquitous character (see, in this regard, the judgment in eDate Advertising and others, C-509/09 and C-161/10, EU:C2011:685, paragraph 45).”

“The Court of Justice maintains that the removal of links from the list of results based on the name of the natural person affected by the dissemination of the news could have repercussions on the legitimate interest of internet users potentially interested in accessing the information in question, so it is necessary to seek a fair balance between this interest and the fundamental right of the affected person.”

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in accordance with Articles 7 and 8 of the Charter of Fundamental Rights of the European Union.”

“(...) to respect the rights established by these provisions, provided that the requirements set forth therein are genuinely met, the operator of a search engine is obliged to remove from the list of results obtained from a search conducted using a person's name links to web pages published by third parties that contain information relating to that person, even in the event that this name or this information is not removed beforehand or simultaneously from these web pages, and, where applicable, even if the publication on such pages is lawful in itself.”

Consequently, the processing of personal data carried out by the operator of a search engine allows for a “name” to yield a list of results that provide information about a person that may affect their private sphere. Once the interested party has submitted their request for the deletion of their personal data to the search engine, it must examine the request and proceed, where appropriate, to delete the specific links from the list of results, without the need to first or simultaneously contact the website owner.

Furthermore, it follows from the above that the conflicting rights and interests must also be weighed in each specific case in order to determine which right prevails.

For the purpose of carrying out the weighing of interests, it should be recalled the Judgment of the Supreme Court, number 545/2015, of October 15, 2015, which states that “the so-called 'right to digital oblivion', which is a specification in this field of the rights derived from the quality requirements for the processing of personal data, does not allow each individual to construct a past to their liking, forcing web page editors or search engine operators to delete the processing of their personal data when associated with facts that are not considered positive. It also does not justify that those who expose themselves publicly can demand that a curriculum be constructed to their liking, controlling the

discourse about themselves, eliminating negative information from the Internet, 'positioning' the results of Internet searches at their whim, so that the most favorable occupy the top positions. If this thesis were accepted, it would severely disrupt the information mechanisms necessary for citizens to make their decisions in the democratic life of a country."

The doctrine reflected in the judgment of the National Court, of June 21, 2019, is also relevant, which specifies, in its fifth legal basis, the following, in relation to information related to the professional life of the interested party:

"(...) General doctrine that is also developed in paragraphs 81, 93, and 97 of the aforementioned Judgment of the CJEU - of May 13, 2014 - indicating that, notwithstanding that prevalence, a fair balance must be sought between the legitimate interest of internet users in accessing information in a search concerning a person's name and the fundamental rights of that person, and it may result..."

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that, for specific reasons such as the role played by the aforementioned interested party in public life, the interference with their fundamental rights is justified by the predominant interest of the public in having access to the information in question as a result of this inclusion.

In the case at hand, moving on to the weighing of the rights and interests at stake, it must first be taken into account that it refers to the professional life of the claimant, an entrepreneur, and not to their personal life, as this is very relevant for modulating the intensity that the protection of the right regulated in Article 18.4 of the Constitution should merit, as this Chamber has pointed out in the Judgments of May 11, 2017 - appeal no. 30/2016 - and June 6, 2017 - appeal no. 1.797/2015.

In this regard, it is appropriate to refer to the guidelines of the Working Group of the 29th on the right to be forgotten (Guidelines on the implementation of the Court of Justice of the European Union Judgment on "Google Spain and Inc v. AEPD and Mario Costeja" C-131/12), which state: "There is a basic difference between a person's private life and their public or professional life. The availability of information in search results becomes more acceptable the less information it reveals about a person's private life (...) it is more likely that the information will be relevant if it relates to the professional life of the interested party, but this will depend on the nature of the interested party's work and the legitimate interest of the public in having access to that information through a search by their name (...)."

When the information refers to private individuals, the Constitutional Court has declared that "even when the news concerning the subject matter relates to public interest, not all its content is protected by the freedom of information—in this case, freedom of expression—, but it may be deemed disproportionate to transmit those facts that, within the news, affect the honor or privacy of the concerned person and that are revealed as 'manifestly unnecessary and irrelevant to the public interest of the information'" (SSTC 105/1990, of June 6, FJ 8, and 121/2002, of May 20, FJ 5).

Furthermore, in order to assess the public relevance of the matter, it must be analyzed whether the published information remains of general interest due to the time elapsed. On this issue, the National Court declared in its judgment dated November 8, 2017, the following: "moreover, unlike the first link, not too much time has elapsed between the date on which the cancellation request was made to the search engine and the date of the publication of the news. Indeed, since the date the news was published (August 2011) and the date on which the right of cancellation was exercised (July 2015), not even four years have passed, and the fact that it is a record, given the terms that apply in this case and as previously stated, does not affect this conclusion."

In this regard, the aforementioned Judgment of the Court of Justice of the European Union states in paragraph 93 the following: "even an initially lawful processing of accurate data may become, over time, incompatible with that Directive when these data are no longer necessary in relation to the purposes for which they were collected or processed. This is particularly the case when they are inadequate, irrelevant, or no longer pertinent or are excessive in relation to these purposes and the time elapsed."

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FIFTH: In the present case, once the documentation submitted by the parties has been examined, it is observed that the claimant exercised their right before the respondent concerning the URLs already referenced.

On the other hand, the respondent, within the deadline, responds that, in some of the URLs, their name does not appear; in others, the questioned URL does not appear when entering their first and last name; in another, blocking has been carried out, and in one, it has been denied with justification. Therefore, in the case analyzed here, it is established that the claimant exercised their right to be forgotten before the respondent, and their request did not receive the legally required response, given that the blocking of all questioned links was not carried out.

However, during the processing of this procedure, the respondent has proceeded to block the URL that appeared in the search results list when entering their name; therefore, it is not necessary to require new certification of this action from the responsible party.

This Agency has verified that, when conducting a search by the name of the claimant in the search engine, the URLs subject to this procedure do not appear indexed.

Based on the above, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, and given that the respondent has proceeded to de-index the questioned URLs during the processing of this procedure, consequently, with the new measures adopted by the respondent, it is appropriate to formally uphold the present claim, without the need for additional actions to be carried out.

Having seen the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the claim made by Mr. A.A.A., against the entity GOOGLE LLC. However, it is not appropriate to issue new certification by said entity, given that it has proceeded to de-index the questioned URLs during the processing of this procedure, without the need for additional actions to be carried out by the responsible party.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and GOOGLE LLC.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, C/ Jorge Juan, 6, www.aepd.es, 28001 – Madrid, sedeagpd.gob.es, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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